

As of 24 June 2025

**Ordinance
on the excising of a fee for the disposal of waste from ships
(Ship Waste Fees Ordinance - SchiffsAbgV)**

On the basis of § 13 of the Hamburg Act on the Disposal of Ship Waste (HmbSchEG) of 26 January 2022 (HmbGVBl. p. 71), it is hereby decreed:

**§ 1
Assessment basis**

(1) The fee in accordance with § 8 Paragraph 1 HmbSchEG, as amended, is calculated according to the type of ship and the size of the ship in gross tonnage (GT). Upon application prior to arrival in a port on the territory of the Free and Hanseatic City of Hamburg, a reduced GT can be used as the basis for calculating the fee if the reduced GT is documented by the tonnage certificate as part of the application procedure.

(2) The fee takes into account the waste types oil, ship sewage (grey and black water) and waste from ships in accordance with Annexes I, IV and V of the International Convention for the Prevention of Pollution from Ships, 1973, and the Protocol of Amendment of 1978 relating thereto (MARPOL) in the version of 12 March 1996 (Federal Law Gazette II p. 399), as amended, as well as passively fished waste.

**§ 2
Standard disposal**

The fee includes the following services as part of standard disposal in accordance with § 9 Paragraph 1 Sentence 1 HmbSchEG:

1. Disposal of oils according to Annex I of the MARPOL Convention (MARPOL I) up to a maximum quantity according to Annex 1 Table 1,
2. Disposal of waste from ships according to Annex V of the MARPOL Convention (MARPOL V) of categories A to C up to the maximum ship-specific storage capacity and of categories D, E, F and I MARPOL V up to a maximum quantity according to Annex 1 Table 2,
3. Disposal of passively fished waste up to the maximum ship-specific storage capacity,
4. The disposal of ship sewage in accordance with Annex 1 Table 1,
5. The collection and transport by the port reception facilities as required for the disposal of waste from ships in accordance with Numbers 1 to 4.

**§ 3
Amount of the fee**

(1) In accordance with Annex 2, the fee is made up of

1. an assessment factor calculated per GT for oil disposal and waste from ships in

*the applicable law is the German original.

accordance with MARPOL V categories A to C, and

2. a fixed amount per call for ship sewage and waste from ships in accordance with MARPOL V categories D, E, F and I.

The fee includes the direct and indirect costs listed in Annex 4 of Directive (EU) 2019/883 of the European Parliament and of the Council of 17 April 2019 on port reception facilities for the unloading of waste from ships, amending Directive 2010/65/EU and repealing Directive 2000/59/EC (OJ L 151, p. 116).

(2) The fee for ships that meet the criteria set out in Section 1 of the Annex to Commission Implementing Regulation (EU) 2022/91 of 21 January 2022 establishing criteria for determining, in accordance with the Directive (EU) 2019/883 of the European Parliament and of the Council, that a ship generates reduced quantities of waste and manages its waste in a sustainable and environmentally sound manner (OJ EU No. L 15 p. 12) and demonstrate this by submitting one of the means of verification referred to in Section 1 of the Annex to Implementing Regulation (EU) 2022/91 shall, upon request, be reduced by 2 per cent (%) of the share of the fee for waste from ships in accordance with MARPOL V.

(3) The share of the fee for oil disposal in accordance with MARPOL I for ships that exclusively use alternative fuels as defined in Article 2 Number 1 of Directive 2014/94/EU of the European Parliament and of the Council of 22 October 2014 on the deployment of alternative fuels infrastructure (OJ EU 2014 No. L 307 p. 1), as amended on 13 August 2019 (OJ EU No. L 268 p. 1), instead of oil during the voyage to the port of call, is reduced by 50 % of the fee amount upon request. The use of the alternative fuel must be documented by submitting one of the test devices listed in Section 2 of the Annex to Implementing Regulation (EU) 2022/91.

(4) The total fee for ships which are used in short sea trade and call at a port in the area of the Free and Hanseatic City of Hamburg will be reduced by 90 per cent upon application.

(5) The options for reducing the fee in accordance with Paragraphs 2 to 4 are not mutually exclusive.

§ 4 Expenses to be settled

The cost of standard disposal to be compensated by the fee in accordance with § 12 Sentence 2 HmbSchEG is determined by the actual costs of the individual disposal steps, in particular the collection, transport and further treatment of the unloaded waste from ships. Even if the maximum quantities stipulated in § 2 are utilised, the expenses for oil, ship sewage and ship waste disposal to be compensated from the fee may not exceed the maximum amounts stipulated in Annex 3.

§ 5

Disbursement from the fees

The competent authority shall reimburse the expenses to be paid in accordance with § 4 from the fee revenue. Payment is made to the operators of the port reception facilities. The prerequisite for payment is that the operators of the port reception facilities give a commitment to the competent authority:

1. to itemise the costs for the individual disposal operations carried out according to the services provided for collection, transport and disposal, and
2. to enable every ship calling at a port in the territory of the Free and Hanseatic City of Hamburg to dispose of waste on request.

§ 6

Notification obligations

(1) For the calculation of the fee in accordance with § 8 Paragraph 3 Sentence 2 in conjunction with § 5 Paragraph 2 HmbSchEG, the parties liable to pay the fee must transmit the following information electronically directly to the data collection module of the Coordination Centre for Electronic Ship Reporting:

1. Name and address of the persons liable to pay the fee in accordance with § 8 Paragraph 2 HmbSchEG as invoice recipient,
2. The type of vessel and the size of the vessel in accordance with § 1 Paragraph 1,
3. Name and address of the authorised port reception facility,
4. The type and quantity of waste to be disposed of (in accordance with the notification form in Annex 2 of Directive (EU) 2019/883).

(2) The competent authority or the body commissioned by it is entitled to retrieve the information referred to in Paragraph 1 from the reports of the central reporting portal in accordance with § 7 Paragraph 2 of the Maritime Reporting Portal Act of 30 June 2017 (Federal Law Gazette I p. 2190), as amended, and to use it in accordance with § 8 of the Maritime Reporting Portal Act.

§ 7

Administrative offences

Any person who intentionally or negligently fails to initiate a transmission, or fails to initiate it correctly, completely or in good time, contrary to § 6 Paragraph 1, shall be deemed to have committed an administrative offence within the meaning of § 15 Paragraph 1 Number 5 HmbSchEG.

§ 8

Implementation of European directives

This regulation implements Directive (EU) 2019/883.

*the applicable law is the German original.

Annex 1

Standard disposal

Table 1
Allowances for MARPOL I and MARPOL IV

Waste category	Definition of the allowance
MARPOL I	Up to the maximum ship-specific storage capacity. A maximum pumping time of 2 hours, or until the maximum ship-specific storage capacity is reached, is covered by the fee. Longer pumping times must be agreed with the waste disposal company and invoiced separately.
MARPOL IV	Maximum 10 m ³ . A maximum pumping time of 2 hours, or until the maximum 10 m ³ is reached, is covered by the fee. Longer pumping times must be agreed with the waste disposal company and invoiced separately.

Table 2
Standard disposal for MARPOL V

Waste category	More detailed description of the waste stream	Definition of limitations	Unit
Disposal MARPOL V Category A	Plastics	Up to the maximum ship-specific storage capacity	
Disposal MARPOL V Category B	Food waste	Up to the maximum ship-specific storage capacity	
Disposal MARPOL V Category C	Household waste	Up to the maximum ship-specific storage capacity	
Disposal MARPOL V Category D	Edible oils	0.03	m ³
Disposal MARPOL V Category E	Ash from incineration plants to be disposed of as 190111 ^{*1}	0.24	m ³
Disposal MARPOL V Category F	Lithium batteries	0.03	m ³
Disposal MARPOL V Category F	Spray cans	0.03	m ³
Disposal MARPOL V Category F	Packaging with harmful residues	0.8	m ³

Disposal MARPOL V Category F	Paints, printing inks, adhesives and synthetic resins containing hazardous substances	0.05	m ³
Disposal MARPOL V Category F	Load carriers (pallets, unpacked)	1	Piece
Disposal MARPOL V Category F	Small batteries (no lithium batteries)	0.3	m ³
Disposal MARPOL V Category F	Large batteries	1	Piece
Disposal MARPOL V Category F	Industrial waste - oily cleaning cloths	0.03	m ³
Disposal MARPOL V Category I	Heat exchangers (e.g. refrigerator, freezer, air conditioner) (Annex 1 No. 1 of the Electrical and Electronic Equipment Act (ElektroG) of 20 October 2015 (Federal Law Gazette I p. 1739), last amended on 8 December 2022 (Federal Law Gazette I p. 2240))	1	Piece
Disposal MARPOL V Category I	Screens (Annex 1 Number 2 ElektroG)	1	Piece
Disposal MARPOL V Category I	Lamps (Annex 1 Number 3 ElektroG)	30	Piece
Disposal MARPOL V Category I	Large appliances (e.g. washing machine, dishwasher, electric cooker) over 50 cm edge length (Annex 1 Number 4 ElektroG)	1	Piece
Disposal MARPOL V Category I	Small appliances up to 50 cm edge length (Annex 1 Number 5 ElektroG) must not contain batteries	1	Piece

¹ Waste Code 19 01 11* according to the Waste Catalogue Ordinance (AVV) = bottom ash and slag containing hazardous substances.

Fee amount for ship calls subject to payment

Table 1
Passenger ships

Fee for	Factor		Fee calculation
MARPOL I	0.0135	euros per GT	The fee is calculated by multiplying the factor by the GT of the ship.
MARPOL IV	1	euros per call	The fee per call is equal to the factor.
MARPOL V A, B, C	0.0810	euros per GT	The fee is calculated by multiplying the factor by the GT of the ship.
MARPOL V D, E, F, I	326,75	euros per call	The fee per call is equal to the factor.

Table 2
Shipping with the exception of passenger ships

Fee for	Factor		Fee calculation
MARPOL I	0.0135	euros per GT	The fee is calculated by multiplying the factor by the GT of the ship.
MARPOL IV	1	euros per call	The fee per call is equal to the factor.
MARPOL V A, B, C	0.0121	euros per GT	The duty is calculated by multiplying the factor by the GT of the ship up to a maximum of 45,000 GT. Ships over 45,000 GT pay 828 euros.
MARPOL V D, E, F, I	47,30	euros per call	The fee per call is equal to the factor.

Payment to port reception facilities

Annex 3

Type of service	Service description	price (in Euro)	Unit
MARPOL I	Arrival and departure (Independent of the transport vehicle), in particular set-up time, waiting time, issuing of papers	270	per collection
MARPOL IV	Arrival and departure (Independent of the transport vehicle), in particular set-up time, waiting time, issuing of papers	254	per collection
MARPOL V A-C	Arrival and departure by barge, in particular set-up time, waiting time, issuing of papers	270	per collection
MARPOL V A-C	Arrival and departure by lorry, in particular set-up time, waiting time, issuing of papers	254	per collection
MARPOL V A-C	Additional arrival and departure after transport capacity is exhausted	254	per collection
MARPOL V D-I	Arrival and departure by barge, in particular set-up time, waiting time, issuing of papers	270	per collection
MARPOL V D-I	Arrival and departure by lorry, in particular set-up time, waiting time, issuing of papers	254	per collection
MARPOL I disposal	Oily residues (sludge and bilge water)	47	m³
Pumpzeit MARPOL I	Sludge and bilge water pumping hours	100	per 30 minutes or part thereof (maximum 2 hours)
MARPOL IV disposal	Domestic wastewater treated	20	m³
Pumpzeit MARPOL IV	Waste water pumping hours	62,5	per 30 minutes or part thereof (maximum 2 hours)
Disposal MARPOL V Kategorie A	for energy recovery	105	m³
Disposal MARPOL V Kategorie B	for energy recovery	130	m³
Disposal MARPOL V Kategorie C	for energy recovery	110	m³
Disposal MARPOL V Kategorie C	Small batteries (no lithium batteries)	55	m³
Disposal MARPOL V Kategorie D	Edible oils	50	m³
Disposal MARPOL V Kategorie E	Ash from incineration plants to be disposed of as 190111**	550	m³
Disposal MARPOL V Kategorie F	Lithium batteries	65	each 30 litres
Disposal MARPOL V Kategorie F	Spray cans	330	m³
Disposal MARPOL V Kategorie F	Packaging with harmful residues	330	m³
Disposal MARPOL V Kategorie F	Paints, printing inks, adhesives and synthetic resins containing hazardous substances	450	m³
Disposal MARPOL V Kategorie F	Load carriers (pallets, unpacked)	10	piece
Disposal MARPOL V Kategorie F	Large batteries	35	piece
Disposal MARPOL V Kategorie F	Industrial waste - oily cleaning cloths	465	m³
Disposal MARPOL V Kategorie I	Heat exchanger (e.g. refrigerator, freezer, air conditioner) (Annex 1 Number 1 ElektroG)	70	piece
Disposal MARPOL V Kategorie I	Screens (Annex 1 Number 2 ElektroG)	35	piece
Disposal MARPOL V Kategorie I	Lamps (Annex 1 Number 3 ElektroG)	0,8	piece
Disposal MARPOL V Kategorie I	Large appliances (e.g. washing machine, dishwasher, electric cooker) over 50 cm edge length (Annex 1 Number 4 ElektroG)	87	piece
Disposal MARPOL V Kategorie I	Small appliances up to 50 cm edge length (Annex 1 Number 5 ElektroG) must not contain batteries	59	piece

* Waste Code 19 01 11* according to the Waste Catalogue Ordinance (AVV) = bottom ash and slag containing hazardous substances.